ORDINANCE NO. 245

AN ORDINANCE ENTITLED AN ORDINANCE TO PROHIBIT THE SETTING OF FIRES AND BURNING COTTON HULLS, RUBBISH, TRASH, WASTE MATERIALS AND ALL OTHER REFUSE, IN THE CORPORATE LIMITS OF THE CITY OF RECTOR, ARKANSAS, AND DECLARING THE SPREADING OF SMOKE AND ASHES FROM SUCH FIRES TO BE A PUBLIC NUISANCE.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

SEC. 1. From and after the passage and publication of this Ordinance, it shall be unlawful for any person, firm, or corporation, to set fire to and burn cotton hulls, rubbish, trash, waste material or any other refuse material, in the corporate limits of the City of Rector, Arkansas, where the wind will carry the smoke and ashes into the streets and alleys, and onto private property, or into residences, business places, or other buildings belonging to any other person, firm or corporation, or to endanger, or to expose to danger by fire, any building, tenement or other improvement situated in the corporate limits of the City of Rector, Arkansas.

SEC. 2. The setting or maintaining of any fire by any person, firm or corporation, to burn cotton hulls, rubbish, trash, waste material, or any other refuse material, in the corporate limits of the City of Rector, Arkansas, where the wind will carry the smoke and ashes into the streets and alleys, and onto private property, or into any residence, place of business, or other buildings, belonging to any other person, firm or corporation, or to endanger, or to expose to danger by fire, any building, tenement or other improvement, or to injure or damage the same by smoke or ashes, in the corporate limits of the City of Rector, Arkansas, shall be deemed and the same is hereby declared to be a public nuisance, and upon conviction shall be punished as hereinafter provided in this Ordinance.

SEC. 3. Any person, firm or corporation who willfully sets fire to or burns any material, of whatever kind or character, in the corporate limits of the City of Rector, Arkansas, or who creates any smoke, ashes, or any obnoxious odor, injurious to health and comfort, where the same is cast upon the streets and alleys, or any other public or private place, shall be deemed to be, and the same is hereby declared to be, the maintaining of a public nuisance.

SEC. 4. Any person, firm, or corporation, violating any provisions of this Ordinance, shall be deemed guilty of a misdemeanor, and upon conviction thereof, shall be fined in any sum not less than Five Dollars, nor more than Fifteen Dollars, and each day of such violation shall constitute a separate offense.

SEC. 5. This Ordinance being necessary for the immediate preservation of the public peace, health and safety, an emergency is hereby declared to exist, and this Ordinance shall be in full force and effect from and after its passage and publication.

Passed and approved by the City Council of the City of Rector, Arkansas, on this the 21st day of September, A. D., 1954.

W. C. Frets
Mayor

Attest:

Bowen M. Janes
City Recorder